

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TALIA FELLAH MEULEAU,

Petitioner

VS.

NICOLAS MEULEAU,

Respondent

) Case Number: FDI-21-795693

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME), SERVE BY EMAIL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Talia Fellah (Mother) and Respondent Nicolas Meuleau (Father) have one minor child together, A.M. (DOB 7/27/2014, age 12), and an older child who reached the age of majority in April 2026.
- 2) Father moved to France in 2024, and the parties entered into a custody and parenting time agreement in June 2024. (See Findings and Order After Hearing filed 10/3/2024.)
- 3) On for hearing is Mother's 4/2/2026 request for modification of the custody and parenting time order. She requests: (1) equal time to both parties during summer break (Mother states A.M. has repeatedly expressed her wish for this); (2) forfeiture of Father's parenting time unless he provides parenting time and travel arrangements to her in writing at least 45 days before his parenting time (Mother states Father has failed to exercise his parenting time for 10 days out of 3 weeks in February 2025 as well as in October 2025 and February 2026, requiring her to arrange for childcare); (3) reimbursement from Father of childcare costs that are the direct result of his

1 failure to exercise his confirmed parenting time; and (4) permission to serve Father by email
2 because she does not have a confirmed physical address for him and the parties have been using
3 email to communicate regarding all custody and parenting time issues.

4 4) Father has filed a response in which she opposes Mother's request regarding summer breaks and
5 notice and potential forfeiture of his October and February parenting time. He states he has not
6 been able to exercise his parenting time in San Francisco due to work, financial, and health
7 issues, but he has exercised all summer parenting time and values the time he is able to spend
8 with the child(ren). He states there are times that weeks go by without contact from the children
9 and that he does not hear from them on his birthday or Father's Day. He asks that Mother better
10 facilitate his communication with A.M. Finally, Father agrees that the parties should be permitted
11 to serve each other via email; he asks that email service be considered personal service so long as
12 the party being served is served via email on or before 4pm on the last day for personal service
13 (local time for the recipient).

14 5) The parties attended mediation and were unable to reach an agreement. At mediation, Mother
15 asked for (1) 5 weeks for each party during the summer; (2) Father to pay the cost of childcare in
16 October and February if he does not exercise his scheduled 3-week parenting time during those
17 months; (3) Father to provide 45 days' notice if he intends to exercise parenting time in October
18 and February, with flight and lodging information; (4) visits to be canceled if Father fails to
19 provide 45 days' notice. At mediation, Father asked for (1) 7 weeks of summer for Father and 3
20 weeks for Mother; (2) Father to provide 30 days' notice about his October and February visits;
21 and (3) childcare costs to be equally shared by the parties if he is unable to exercise his October
22 and February visits.

23 **B. Findings and Orders**

24 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
25 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
26 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
27 child is the United States.
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- 2) The Court finds it is in A.M.'s best interest to maintain the current order regarding summer breaks. The Court denies Mother's request for equal parenting time during the summer, without prejudice to revisiting this issue in future years.
- 3) Beginning in 2027, Father shall provide written notice to Mother of his intended February parenting time by emailing her with his dates of travel and flight and lodging information on or before January 1. Beginning in 2027, Father shall provide written notice to Mother of his intended October parenting time by emailing her with his dates of travel and flight and lodging information on or before September 1. Once this email is sent and received, Father's parenting time is confirmed. (Until 2027, i.e., for any October 2026 parenting time, the current order remains in full force and effect.)
- 4) If Father does not provide written notice to Mother by email of his February or October parenting time by the dates set forth above (in #3), his parenting time is deemed forfeited for those months. If Mother incurs any childcare costs due to Father's forfeited parenting time during those months, she shall be solely responsible for any such costs incurred.
- 5) If Father cancels a confirmed visit in either February or October (i.e., after he has already provided written notice to Mother by email of his February or October parenting time), and Mother incurs any childcare costs due to Father's cancelation of a confirmed visit, Father shall be solely responsible for any such costs incurred.
- 6) Mother shall ensure that Father and A.M. are able to contact each other via email or phone or video call through a device such as a smart phone or iPad.
- 7) The parties have agreed to serve each other by email. Going forward, the parties shall serve each other via email, and email service will constitute personal service so long as the person being served is served via email on or before 4pm on the last day for personal service (4pm local time for the recipient).
- 8) The Court will prepare the Findings and Order After Hearing.